

**U.S. Bankruptcy Court
Western District of Virginia (Lynchburg)
Adversary Proceeding #: 13-06030**

Assigned to: Judge Rebecca B. Connelly

Lead BK Case: [13-60044](#)

Lead BK Title: Clyde Alexander Long, Jr. and Latoya
Lyniese Long

Lead BK Chapter: 7

Demand: \$1254000

Date Filed: 04/01/13

Date Terminated: 02/10/16

Nature[s] of Suit: 68 Dischargeability - 523(a)(6), willful and malicious injury

Plaintiff

Crystal D Lewis
800 Fairfax Street Apt 6
Culpeper, Va 22701

represented by **J. Michael Sharman**
Commonwealth Law Office, PC
246 East Davis
Suite 200
Culpeper, VA 22701
(540) 727-1007
Email: mikesharman@verizon.net
LEAD ATTORNEY

V.

Defendant

Clyde Alexander Long, Jr.
16381 Willis Road
Orange, VA 22960
SSN / ITIN: xxx-xx-1001

represented by **Marshall Moore Slayton, Esq**
Slayton Law, PLC
913 East Jefferson Street
Charlottesville, VA 22902
434-979-7900
Email: marshall@marshallslayton.com
LEAD ATTORNEY

Filing Date	#	Docket Text
04/01/2013	1 (16 pgs)	Adversary case 13-06030. Complaint by J. Michael Sharman on behalf of Crystal D Lewis against Clyde Alexander Long Jr.. Fee Amount \$293. Nature of Suit: (68 (Dischargeability - 523(a)(6), willful and malicious injury)) (Sharman, J.) (Entered: 04/01/2013)

04/01/2013	2	Receipt of Complaint(13-06030) [cmp,cmp] (293.00) Filing Fee. Receipt number 4759596. Fee amount 293.00. (re: Doc# 1) (U.S. Treasury) (Entered: 04/01/2013)
04/02/2013	3 (16 pgs)	Amended Complaint <i>with endorsement</i> by J. Michael Sharman on behalf of Crystal D Lewis against Clyde Alexander Long Jr.. (RE: related document(s) 1 Adversary case 13-06030. Complaint by J. Michael Sharman on behalf of Crystal D Lewis against Clyde Alexander Long Jr.. Fee Amount \$293. Nature of Suit: (68 (Dischargeability - 523(a)(6), willful and malicious injury)) (Sharman, J.) filed by Plaintiff Crystal D Lewis). (Sharman, J.) (Entered: 04/02/2013)
04/02/2013	4 (3 pgs)	Summons Issued to Attorney for Plaintiff Pre-Trial Conference set for 5/20/2013 at 09:30 AM at Charlottesville, Room 200, US Courthouse, 255 W. Main St., Charlottesville, VA 22902. (Maddox, Lisa) (Entered: 04/02/2013)
04/04/2013	5 (1 pg)	Notice. <i>Certification of Service</i> Filed by Plaintiff Crystal D Lewis. (Sharman, J.) (Entered: 04/04/2013)
04/09/2013	6 (2 pgs)	Certificate <i>Return Receipt of Certified Mailing of AP Complaint</i> Filed by J. Michael Sharman on behalf of Crystal D Lewis. (Sharman, J.) (Entered: 04/09/2013)
04/09/2013	7 (2 pgs)	Certificate of Mailing <i>Return of Service upon Marshall Slayton of AP Complaint</i> Filed by J. Michael Sharman on behalf of Crystal D Lewis. (Sharman, J.) (Entered: 04/09/2013)
05/01/2013	8 (3 pgs)	Answer to Complaint Filed by Clyde Alexander Long Jr. (RE: related document(s) 3 Amended Complaint <i>with endorsement</i> by J. Michael Sharman on behalf of Crystal D Lewis against Clyde Alexander Long Jr.. (RE: related document(s) 1 Adversary case 13-06030. Complaint by J. Michael Sharman on behalf of Crystal D Lewis against Clyde Alexander Long Jr.. Fee Amount \$293. Nature of Suit: (68 (Dischargeability - 523(a)(6), willful and malicious injury)) (Sharman, J.) filed by Plaintiff Crystal D Lewis). (Sharman, J.) filed by Plaintiff Crystal D Lewis). Hearing scheduled 5/20/2013 at 09:30 AM at Charlottesville, Room 200, US Courthouse, 255 W. Main St., Charlottesville, VA 22902. (Slayton, Marshall) (Entered: 05/01/2013)
05/20/2013	9 (1 pg)	Pre-Trial Conference Held--Discovery Deadline, 9/23/2013, Motions filed 8/16/2013, Motions hearing set for 9/16/2013 at 11:00AM at Charlottesville, Trial Hearing scheduled 10/21/2013 at 11:30 AM at Charlottesville, Room 200, US Courthouse, 255 W. Main St., Charlottesville, VA 22902. (Maddox, Lisa) (Entered: 05/21/2013)
05/22/2013	10 (2 pgs)	Scheduling Order (Trial) Signed on 5/22/2013. Discovery due by 9/23/2013. Trial date set for 10/21/2013 at 11:30 AM at Charlottesville, Room 200, US Courthouse, 255 W. Main St., Charlottesville, VA 22902. Motions filed 8/16/2013. Motion hearing : 09/16/2013 at 11:00AM at Charlottesville. (Maddox, Lisa) (Entered: 05/22/2013)

05/24/2013	<u>11</u> (4 pgs)	BNC Certificate of Mailing - PDF Document. (RE: related document(s) <u>10</u> Scheduling Order) No. of Notices: 2. Notice Date 05/24/2013. (Admin.) (Entered: 05/25/2013)
10/21/2013	<u>12</u> (2 pgs)	Witness List Filed by Marshall Moore Slayton Esq on behalf of Clyde Alexander Long Jr.. (Slayton, Marshall) (Entered: 10/21/2013)
10/21/2013	<u>13</u> (26 pgs)	Exhibit <i>List with Exhibits</i> Filed by Marshall Moore Slayton Esq on behalf of Clyde Alexander Long Jr.. (Slayton, Marshall) (Entered: 10/21/2013)
10/21/2013	14	Evidentiary Hearing - Trial Held -Ruling, Taken under Advisement. (RE: related document(s) <u>3</u> Amended Complaint filed by Plaintiff Crystal D Lewis, <u>8</u> Answer to Complaint filed by Defendant Clyde Alexander Long, <u>12</u> Witness List filed by Defendant Clyde Alexander Long, <u>13</u> Exhibit filed by Defendant Clyde Alexander Long) Plaintiff Exhibit 1-11 marked & admitted, 1) Plea of Guilty to Felony 2) Plea Agreement 3) Sentencing Order 4) Motion for Judgment 5) Order entering Def. Judgment 6) Promissory Installment note 7) Confession of Judgment 8) Request for Admission 9) Def. Responses to Plaintiff request for Admission 10) Letter form def to Ctrystal Lewis 11) Original envelopes(7) for letters from Def. & Plaintiff. Counsel for Plaintiff to see that all exhibits are electronically filed. Defendant Exhibit A-Letter from debtor to Crystal Lewis, Motion to Strike madeby Slayton, Under Advisement. W-1 Debtor Clyde A. Long, Jr., Defendant. (Maddox, Lisa) (Entered: 10/22/2013)
10/21/2013	15	Matter Under Advisement (RE: related document(s) <u>3</u> Amended Complaint filed by Plaintiff Crystal D Lewis, <u>8</u> Answer to Complaint filed by Defendant Clyde Alexander Long, <u>10</u> Scheduling Order, <u>12</u> Witness List filed by Defendant Clyde Alexander Long, <u>13</u> Exhibit filed by Defendant Clyde Alexander Long) (Maddox, Lisa) (Entered: 10/22/2013)
10/22/2013	<u>16</u> (61 pgs)	Exhibit <i>1 to 11</i> Filed by J. Michael Sharman on behalf of Crystal D Lewis. (Sharman, J.) (Entered: 10/22/2013)
11/26/2013	<u>17</u> (88 pgs)	Transcript regarding Hearing Held 10/21/13 RE: Trial - Dischargeability-523(a)(6) Willful and Malicious Injury. THIS TRANSCRIPT WILL BE MADE ELECTRONICALLY AVAILABLE TO THE GENERAL PUBLIC 90 DAYS AFTER THE DATE OF FILING, TRANSCRIPT RELEASE DATE IS 02/24/2014. Until that time the transcript may be viewed at the Bankruptcy Court or a copy may be obtained from the official court transcriber. Court Reporter/Transcriber Shelly Tyree, Telephone number 434-239-2552.. Notice of Intent to Request Redaction Deadline Due By 12/3/2013. Redaction Request Due By 12/17/2013. Redacted Transcript Submission Due By 12/27/2013. Transcript access will be restricted through 02/24/2014. (Evans, Denise) (Entered: 11/26/2013)
01/28/2014	<u>18</u> (21 pgs)	Memorandum Decision Signed on 1/28/2014 (RE: related document(s) <u>1</u> Complaint filed by Plaintiff Crystal D Lewis, 15

		Matter Under Advisement). (Maddox, Lisa) (Entered: 01/29/2014)
01/28/2014	19 (2 pgs)	Disposition of Adversary 6:13-ap-6030 Order Granting Defendant's Motion for Judgment on Partial Findings and Denying Plaintiff's Section 523(a)(6) Action Signed on 1/28/2014. Case to Be Closed if Applicable 02/11/2014. (Maddox, Lisa) (Entered: 01/29/2014)
01/31/2014	20 (22 pgs)	BNC Certificate of Mailing - PDF Document. (RE: related document(s) 18 Memorandum Decision) No. of Notices: 2. Notice Date 01/31/2014. (Admin.) (Entered: 02/01/2014)
01/31/2014	21 (3 pgs)	BNC Certificate of Mailing - PDF Document. (RE: related document(s) 19 Disposition of Adversary) No. of Notices: 2. Notice Date 01/31/2014. (Admin.) (Entered: 02/01/2014)
02/11/2014	22 (2 pgs)	First Notice of Appeal to District Court . Fee Amount \$298 Filed by Plaintiff Crystal D Lewis. Appellant Designation due by 02/25/2014. (Sharman, J.) (Entered: 02/11/2014)
02/11/2014	23	Receipt of Notice of Appeal(13-06030) [appeal,ntcapl] (298.00) Filing Fee. Receipt number 5397053. Fee amount 298.00. (re: Doc# 22) (U.S. Treasury) (Entered: 02/11/2014)
02/11/2014	24 (3 pgs)	Notice of Filing Appeal (RE: related document(s) 22 Notice of Appeal filed by Plaintiff Crystal D Lewis) (Maddox, Lisa) (Entered: 02/11/2014)
02/13/2014	25 (4 pgs)	BNC Certificate of Mailing - PDF Document. (RE: related document(s) 24 Notice of Filing Appeal) No. of Notices: 3. Notice Date 02/13/2014. (Admin.) (Entered: 02/14/2014)
02/19/2014	26 (2 pgs)	Letter <i>Notice of Change of Address</i> Filed by J. Michael Sharman on behalf of Crystal D Lewis. (Sharman, J.) (Entered: 02/19/2014)
02/23/2014	27 (4 pgs)	Appellant Designation of Contents For Inclusion in Record On Appeal Filed by Plaintiff Crystal D Lewis (RE: related document(s) 22 Notice of Appeal). Appellee designation due by 03/10/2014. (Sharman, J.) (Entered: 02/23/2014)
03/07/2014	28 (2 pgs)	Appellee Designation of Contents for Inclusion in Record of Appeal Filed by Defendant Clyde Alexander Long Jr. (RE: related document(s) 22 Notice of Appeal). (Slayton, Marshall) (Entered: 03/07/2014)
03/14/2014	29 (3 pgs)	Appeal Transmitted (Maddox, Lisa) (Entered: 03/14/2014)
03/18/2014	30	Notice of Docketing Record on Appeal to Court of Appeals. Case Number: 0423314000101 (RE: related document(s) 22 Notice of Appeal filed by Plaintiff Crystal D Lewis) 3:14-cv-00010-GEC (Maddox, Lisa) (Entered: 03/18/2014)

11/24/2014	31 (13 pgs; 2 docs)	Appeal Decision Entered by Roanoke District Court Court (RE: related document(s) 22 Notice of Appeal filed by Plaintiff Crystal D Lewis, 30 Notice of Docketing Record on Appeal) (Attachments: # 1 Memorandum Opinion) (Maddox, Lisa) (Entered: 11/25/2014)
03/24/2015	32 (2 pgs)	Order granting Lewis's motion for rehearing to the extent that the court orders a limited remand to the bankruptcy court for clarification. Signed on 3/24/2015 (RE: related document(s) 31 Appeal Decision). (Maddox, Lisa) (Entered: 03/25/2015)
03/27/2015	33 (3 pgs)	BNC Certificate of Mailing - PDF Document. (RE: related document(s) 32 Order) No. of Notices: 2. Notice Date 03/27/2015. (Admin.) (Entered: 03/28/2015)
03/31/2015	34 (2 pgs)	Appeal Decision Entered by Fourth Circuit Court Court (RE: related document(s) 31 Appeal Decision, 32 Order) (Maddox, Lisa) (Entered: 04/01/2015)
04/22/2015	35 (2 pgs)	Order Clarifying Bankruptcy Court's Prior Opinion. Signed on 4/22/2015 (RE: related document(s) 18 Memorandum Decision, 19 Disposition of Adversary). (Maddox, Lisa) (Entered: 04/22/2015)
04/22/2015	36 (13 pgs)	Memorandum Decision - Supplemental Opinion Clarifying Bankruptcy Court's Prior Opinion. Signed on 4/22/2015 (RE: related document(s) 35 Order). (Maddox, Lisa) (Entered: 04/22/2015)
04/24/2015	37 (3 pgs)	BNC Certificate of Mailing - PDF Document. (RE: related document(s) 35 Order) No. of Notices: 2. Notice Date 04/24/2015. (Admin.) (Entered: 04/25/2015)
04/24/2015	38 (14 pgs)	BNC Certificate of Mailing - PDF Document. (RE: related document(s) 36 Memorandum Decision) No. of Notices: 2. Notice Date 04/24/2015. (Admin.) (Entered: 04/25/2015)
02/10/2016	39	Adversary Case 6:13-ap-6030 Closed (Maddox, Lisa) (Entered: 02/10/2016)
03/17/2016	40 (9 pgs; 2 docs)	Appeal Decision Entered by District Court by Hon. Glen E. Conrad Court (RE: related document(s) 34 Appeal Decision, 35 Order, 36 Memorandum Decision) (Attachments: # 1 Memorandum Opinion) (Maddox, Lisa) (Entered: 03/18/2016)

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Billable Pages:	4	Cost:	0.40